



Bill Number: S.B. 1026

Farnsworth Floor Amendment

Reference to: EDUCATION

Committee amendment

Amendment drafted by: Leg. Council

FLOOR AMENDMENT EXPLANATION

- Requires the Arizona Department of Education to annually review information that is readily available to determine whether an alternative education program or alternative school satisfies the eligibility requirement that at least 70 percent of the students enrolled are students who are in grades 6 through 12 and are unable to profit from the regular school course of study and environment.

FARNSWORTH FLOOR AMENDMENT
SENATE AMENDMENTS TO S.B. 1026
(Reference to EDUCATION Committee amendment)

Amendment instruction key:

[GREEN UPPERCASE UNDERLINING IN BRACKETS] indicates that the amendment is adding text to statute or previously enacted session law.
[Green lowercase underlining in brackets] indicates that the amendment is adding text to new session law or is restoring previously stricken text to existing statute.
~~[GREEN UPPERCASE STRIKEOUT IN BRACKETS]~~ indicates that the amendment is removing new text from statute or previously enacted session law.
~~[Green lowercase strikeout in brackets]~~ indicates that the amendment is removing text from existing statute, previously enacted session law or new session law.
<<Double green carets enclosing an entire section>> indicates that the amendment is adding the section to the bill.
~~<<Green strikeout with double green carets enclosing an entire section>>~~ indicates that the amendment is removing the section to the bill.
{[ORANGE UPPERCASE UNDERLINING IN DOUBLE CURLY BRACKETS]} indicates that the amendment to an amendment is adding text to statute or previously enacted session law.
{[Orange lowercase underlining in double curly brackets]} indicates that the amendment to an amendment is adding text to new session law or is restoring previously stricken text to existing statute.
~~{[ORANGE UPPERCASE STRIKEOUT IN DOUBLE CURLY BRACKETS]}~~ indicates that the amendment to an amendment is removing new text from statute or previously enacted session law.
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>>Double orange underlined carets enclosing an entire section>> indicate that the amendment to an amendment is adding the section to the bill.
~~>>Orange strikeout with double orange underlined carets enclosing an entire section>>~~ indicates that the amendment to an amendment is removing the section from the bill.

1 The bill as proposed to be amended is reprinted as follows:

2 Section 1. Section 15-796, Arizona Revised Statutes, is amended to
3 read:

4 15-796. Alternative education programs; alternative schools;
5 requirements; funding; eligibility; appeal;
6 definitions

7 A. The governing board of a school district may contract with any
8 public body or private person for the purpose of providing alternative
9 education programs or alternative schools.

10 B. On the approval of the parent or guardian of a student or of a
11 student who is an emancipated person, the superintendent of a school
12 district may recommend to the governing board the placement of the student
13 in an alternative education program or alternative school as provided in
14 this article.

15 C. An alternative education program or alternative school may
16 deliver the annual required ~~[instructional time or]~~ instructional hours
17 prescribed ~~in~~ PURSUANT TO section 15-797, subsection D or any other

1 section to students on any day of the week[, CONSISTENT WITH THE CALENDAR
2 THAT THE ALTERNATIVE EDUCATION PROGRAM OR ALTERNATIVE SCHOOL SUBMITS TO
3 THE DEPARTMENT OF EDUCATION].

4 D. An alternative education program or alternative school may
5 enroll and begin to receive funding for a student without a withdrawal
6 form from the student's previous school if the withdrawal has been
7 verified in the student accountability information system and the
8 alternative education program or alternative school retains electronic
9 documentation validating the withdrawal.

10 E. Notwithstanding any other law, if the previous school of a
11 student who is enrolled in an alternative education program or alternative
12 school incorrectly codes the student as a graduate in the student
13 accountability information system, the alternative education program or
14 alternative school in which the student is currently enrolled may continue
15 to enroll the student. On notification that a student who has been
16 incorrectly coded as a graduate is enrolled in an alternative education
17 program or alternative school, the department of education shall allocate
18 funding for the student beginning on the date of the student's enrollment
19 in the alternative education program or alternative school.

20 F. THE DEPARTMENT OF EDUCATION AND THE STATE BOARD OF EDUCATION MAY
21 NOT REQUIRE A SCHOOL DISTRICT GOVERNING BOARD, ALTERNATIVE EDUCATION
22 PROGRAM PROVIDER OR ALTERNATIVE SCHOOL THAT IS OPERATING IN GOOD STANDING
23 TO RECERTIFY OR OTHERWISE SUBMIT AN APPLICATION TO CONTINUE PROVIDING AN
24 ALTERNATIVE EDUCATION PROGRAM OR ALTERNATIVE SCHOOL PURSUANT TO THIS
25 ARTICLE [MORE THAN ONE TIME DURING ANY FIVE-YEAR PERIOD]. THE DEPARTMENT
26 OR THE STATE BOARD MAY REQUIRE A SCHOOL DISTRICT GOVERNING BOARD,
27 ALTERNATIVE EDUCATION PROGRAM PROVIDER OR ALTERNATIVE SCHOOL TO:

28 1. SUBMIT AN APPLICATION TO BEGIN PROVIDING AN ALTERNATIVE
29 EDUCATION PROGRAM OR ALTERNATIVE SCHOOL.

30 2. PROVIDE NOTICE BEFORE CLOSING AN EXISTING ALTERNATIVE SCHOOL.

31 [3. DEMONSTRATE, IN A FORM AND MANNER PRESCRIBED BY THE DEPARTMENT,
32 THAT AT LEAST SEVENTY PERCENT OF THE STUDENTS WHO ARE ENROLLED IN THE
33 ALTERNATIVE EDUCATION PROGRAM OR ALTERNATIVE SCHOOL ARE STUDENTS IN GRADES
34 SIX THROUGH TWELVE WHO ARE UNABLE TO PROFIT FROM THE REGULAR SCHOOL COURSE
35 OF STUDY AND ENVIRONMENT.

36 G.] {{THE DEPARTMENT OF EDUCATION SHALL ANNUALLY REVIEW INFORMATION
37 THAT IS READILY AVAILABLE TO THE DEPARTMENT TO DETERMINE WHETHER AN
38 ALTERNATIVE EDUCATION PROGRAM OR ALTERNATIVE SCHOOL SATISFIES THE
39 REQUIREMENTS PRESCRIBED BY SUBSECTION F, PARAGRAPH 3 OF THIS SECTION.}}
40 [ON FINDING THAT AN ALTERNATIVE EDUCATION PROGRAM OR ALTERNATIVE SCHOOL
41 FAILS TO SATISFY THE REQUIREMENTS PRESCRIBED BY SUBSECTION F, PARAGRAPH 3
42 OF THIS SECTION, THE DEPARTMENT OF EDUCATION SHALL NOTIFY THE ALTERNATIVE
43 EDUCATION PROGRAM OR ALTERNATIVE SCHOOL THAT IT IS NOT ELIGIBLE TO USE THE
44 PROVISIONS OF THIS ARTICLE UNTIL THE STATE BOARD OF EDUCATION DETERMINES
45 THAT THE PROGRAM OR SCHOOL IS IN COMPLIANCE. A SCHOOL DISTRICT GOVERNING
46 BOARD, ALTERNATIVE EDUCATION PROGRAM PROVIDER OR ALTERNATIVE SCHOOL MAY
47 APPEAL THE DEPARTMENT'S FINDING TO THE STATE BOARD OF EDUCATION AND
48 REMAINS ELIGIBLE TO USE THE PROVISIONS OF THIS ARTICLE UNTIL THE APPEAL IS
49 CONCLUDED.]

1 ~~F.~~ [G.] [H.] For the purposes of this section:

2 1. "Alternative education" means the modification of the school
3 course of study and adoption of teaching methods, materials and
4 techniques, including using any instructional time models pursuant to
5 section 15-901.08, to provide educationally for students in grades six
6 through twelve who are unable to profit from the regular school course of
7 study and environment.

8 2. "Student accountability information system" means the student
9 accountability information system established by section 15-1041.

10 Enroll and engross to conform

11 Amend title to conform

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